

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X
NICHOLAS MANFRE,

Plaintiff,

-against-

**THE CITY OF NEW YORK,
P.O. HECTOR VALDEZ, and
P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20,**

Defendants.
-----X

**Index No.:
Date purchased:
SUMMONS**

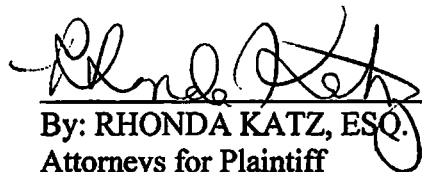
**Plaintiff designates
Queens County as Place of
Trial**

**The basis of venue is the
location of occurrence -
69th Street between Central
Avenue and 70th Avenue,
Queens, New York**

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

**Dated: New York, New York
December 4, 2018**

RASKIN & KREMIN, L.L.P.


By: RHONDA KATZ, ESQ.
Attorneys for Plaintiff

NICHOLAS MANFRE
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434
File No.: N-4508

TO:

DEFENDANTS

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. HECTOR VALDEZ
104th Precinct
64-2 Catalpa Avenue
Queens, New York 11385

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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NICHOLAS MANFRE,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O. HECTOR VALDEZ, and
P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20,

Defendants.
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Index No.:

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VERIFIED COMPLAINT

Plaintiff, NICHOLAS MANFRE, by his attorneys, RASKIN & KREMINS, L.L.P.
complaining of Defendants, upon information and belief, respectfully allege as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, Plaintiff, NICHOLAS MANFRE, was and is
a resident of the City and State of New York, County of Queens.

2. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation duly organized and existing under and by virtue of the laws
of the State of New York.

3. That at all times hereinafter mentioned, Defendant, P.O. HECTOR VALDEZ, was
employed by Defendant THE CITY OF NEW YORK.

4. That at all times hereinafter mentioned, Defendant, P.O. HECTOR VALDEZ, was
a member of the New York City Police Department and with the title and rank of police officer on
September 6, 2017.

5. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO.1 – P.O.
JOHN DOE NO. 20, were employed by Defendant THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO. 1 – JOHN DOE NO. 20, were members of the New York Police Department.

7. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO. 1 – JOHN DOE NO. 20, were employed by Defendant THE CITY OF NEW YORK, whose full identities are presently unknown, and were members of the 104th police precinct in the New York City Police Department, and were involved in and committed the acts alleged in the subject incident that forms the basis of the within action.

8. That on November 27, 2017, Plaintiff duly served a Notice of Claim upon Defendant THE CITY OF NEW YORK in accordance with the statutory requirements of New York General Municipal Law §50(e).

9. That on February 15, 2018, Plaintiff duly appeared and testified under oath at the hearing conducted on behalf of Defendant THE CITY OF NEW YORK in accordance with and pursuant to N.Y. General Municipal Law §50(h).

10. That Plaintiff has complied with all conditions precedent to the commencement of this action, and in particular, within ninety (90) days of this occurrence Plaintiff has served a Notice of Claim and duly appeared for a hearing in accordance with and pursuant to N.Y. General Municipal Law §50(h), and more than thirty (30) days have elapsed since the presentation of Plaintiff's claim.

11. That Defendant, THE CITY OF NEW YORK, has neglected and/or refused to make adjustment or payment pursuant to Plaintiff's claim and less than one year and ninety (90) days have elapsed since the accrual of the cause of action herein set forth.

12. That at all times hereinafter mentioned, Defendant, P.O. HECTOR VALDEZ, was acting within the scope of his employment with Defendant, THE CITY OF NEW YORK, as a

member of The New York City Police Department.

13. That at all times hereinafter mentioned, Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE, NO. 20, were acting within the scope of their employment with Defendant, THE CITY OF NEW YORK, as members of The New York City Police Department.

14. That on or about September 6, 2017, at approximately between 9:30 p.m. and 10:00 p.m., Defendant P.O. HECTOR VALDEZ came to be present at and about 69th Street, between Central Avenue and 70th Avenue, in the City and State of New York, County of Queens, during the normal course of his employment with Defendant, THE CITY OF NEW YORK.

15. That on or about September 6, 2017, at approximately between 9:30 p.m. and 10:00 p.m., Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20 came to be present at and about 69th Street, between Central Avenue and 70th Avenue, in the City and State of New York, County of Queens, during the normal course of their employment with Defendant, THE CITY OF NEW YORK.

16. That on or about September 6, 2017, at approximately between 9:30 p.m. and 10:00 p.m., Plaintiff NICHOLAS MANFRE, was a lawful passenger in a motor vehicle at and about 69th Street, between Central Avenue and 70th Avenue, in the City and State of New York, County of Queens.

17. That on or about September 6, 2017, at approximately between 9:30 p.m. and 10:00 p.m., as a result of the wrongful, willful, reckless, careless and negligent acts of Defendants herein, their agents, servants and/or employees, Plaintiff NICHOLAS MANFRE sustained severe and permanent personal injuries.

18. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendant P.O. HECTOR VALDEZ, and P.O. JOHN DOE

NO. 1 – P.O. JOHN DOE NO. 20.

19. That the foregoing occurred solely and wholly as a result of the negligence of Defendants herein, their agents, servants and/or employees, and without any negligence on the part of Plaintiff NICHOLAS MANFRE contributing thereto.

20. That Defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing Plaintiff NICHOLAS MANFRE to be subjected to assault and battery, traumatized, pushed, shoved, tackled, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force, in negligently and carelessly failing to adequately train police officers and/or other personnel for the public's safety, including Plaintiff NICHOLAS MANFRE; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

21. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff NICHOLAS MANFRE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff NICHOLAS MANFRE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits

of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 21 of the complaint herein with the same force and effect as if set forth herein at length.

23. That Defendant, P.O. HECTOR VALDEZ acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff NICHOLAS MANFRE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

24. That Defendants P.O. JOHN DOE NO.1 – P.O. JOHN DOE NO. 20 acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff NICHOLAS MANFRE, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

25. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendant P.O. HECTOR VALDEZ, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20.

26. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff NICHOLAS MANFRE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff NICHOLAS MANFRE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits

of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 26 of the complaint herein with the same force and effect as if set forth herein at length.

28. That Defendant, P.O. HECTOR VALDEZ acting under the color of authority and without provocation, viciously and maliciously detained, searched, falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

29. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20 acting under the color of authority and without provocation, viciously and maliciously detained, searched, falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

30. That Defendant THE CITY OF NEW YORK, by and through its employees, including, P.O. HECTOR VALDEZ, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, without provocation, viciously and maliciously detained, searched, falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

31. That Defendant P.O. HECTOR VALDEZ, without probable cause, falsely arrested Plaintiff.

32. That Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, without probable cause, falsely arrested Plaintiff.

33. That Defendant THE CITY OF NEW YORK, by and through its employees, including Defendant P.O. HECTOR VALDEZ, and P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, without probable cause, falsely arrested Plaintiff.

34. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendant P.O. HECTOR VALDEZ, and P.O. JOHN DOE

NO. 1 – P.O. JOHN DOE NO. 20.

35. That Plaintiff NICHOLAS MANFRE was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

36. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff NICHOLAS MANFRE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff NICHOLAS MANFRE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 36 of the complaint herein with the same force and effect as if set forth herein at length.

38. That Defendant THE CITY OF NEW YORK, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff NICHOLAS MANFRE wrongfully depriving him of his liberty and due process of law.

39. That Defendant, THE CITY OF NEW YORK acting under the color of authority and without provocation, viciously and maliciously falsely compelled Plaintiff NICHOLAS MANFRE to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

40. That Defendant, P.O. HECTOR VALDEZ, acting under the color of authority and

without provocation, viciously and maliciously falsely prosecuted Plaintiff NICHOLAS MANFRE wrongfully depriving him of his liberty and due process of law.

41. That Defendant, P.O. HECTOR VALDEZ, acting under the color of authority and without provocation, viciously and maliciously falsely compelled Plaintiff NICHOLAS MANFRE to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

42. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff NICHOLAS MANFRE wrongfully depriving him of his liberty and due process of law.

43. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, acting under the color of authority and without provocation, viciously and maliciously falsely compelled Plaintiff NICHOLAS MANFRE to appear in public and in court, wrongfully humiliating him and depriving him of his liberty and due process of law.

44. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including, Defendant P.O. HECTOR VALDEZ, and Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20.

45. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff NICHOLAS MANFRE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff NICHOLAS MANFRE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 45 of the complaint herein with the same force and effect as if set forth herein at length.

47. That on September 6, 2017, at approximately between 9:30 p.m. and 10:00 p.m., at the above-stated location, at 69th Street between Central Avenue and 70th Avenue, in the City and State of New York, County of Queens, Defendant HECTOR VALDEZ, acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined Plaintiff; that thereafter, Defendant, HECTOR VALDEZ did cause Plaintiff to be transported from the aforesaid location to the 104th Precinct of the New York City Police Department, and continued to wrongfully confine, and imprison Plaintiff, all of which deprived Plaintiff of his liberty.

48. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

49. That the aforesaid acts of Defendant P.O. HECTOR VALDEZ under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

50. That Defendant, P.O. HECTOR VALDEZ, under color of law, as an individual, violated 42 U.S.C. §1983.

51. That the aforesaid actions of Defendant, P.O. HECTOR VALDEZ, as an individual constituted an unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

52. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff NICHOLAS MANFRE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff NICHOLAS MANFRE was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 52 of the complaint herein with the same force and effect as if set forth herein at length.

54. That on September 6, 2017, at approximately between 9:30 p.m. and 10:00 p.m., at the above-stated location, at 69th Street between Central Avenue and 70th Avenue, in the City and State of New York, County of Queens, Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined Plaintiff; that thereafter, Defendant, HECTOR VALDEZ did cause Plaintiff to be transported from the aforesaid location to the 104th Precinct of the New York City Police Department, and continued to wrongfully confine, and imprison Plaintiff, all of which deprived Plaintiff of his liberty.

55. That Plaintiff was conscious of his confinement; Plaintiff did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

56. That the aforesaid acts of Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, each as individuals, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, violated Plaintiff's right to be free from unreasonable search and seizure, and/or violated Plaintiff's right to equal protection under the law, all of which are guaranteed to Plaintiff as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to Plaintiff pursuant to 42 U.S.C. §1983.

57. That Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, under color of law, each as individuals, violated 42 U.S.C. §1983.

58. That the aforesaid actions of Defendants, P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, each as individuals, constituted an unreasonable seizure and confinement of Plaintiff without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

59. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff NICHOLAS MANFRE will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs 1 through 59 of the complaint herein with the same force and effect as if set forth herein at length.

61. That by reason of the foregoing acts and/or omissions of Defendant P.O. HECTOR VALDEZ in violation of the Fourth Amendment to the United States Constitution, Plaintiff NICHOLAS MANFRE has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorneys' fees.

62. That pursuant to 42 U.S.C. §1983, Plaintiff NICHOLAS MANFRE is entitled to reasonable attorneys' fees as part of costs.

AS AND FOR AN EIGHTH CAUSE OF ACTION

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 62 of the complaint herein with the same force and effect as if set forth herein at length.

64. That by reason of the foregoing acts and/or omissions of Defendants P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20, in violation of the Fourth Amendment to the United States Constitution, Plaintiff NICHOLAS MANFRE has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorneys' fees.

65. That pursuant to 42 U.S.C. §1983, Plaintiff NICHOLAS MANFRE is entitled to reasonable attorneys' fees as part of costs.

AS AND FOR A NINTH CAUSE OF ACTION

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 65 of the complaint herein with the same force and effect as if set forth herein at length.

67. That at all times hereinafter mentioned, Defendants, without cause or justification,

did intentionally inflict emotional distress and humiliation upon Plaintiff NICHOLAS MANFRE causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

68. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TENTH CAUSE OF ACTION

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 68 of the complaint herein with the same force and effect as if set forth herein at length.

70. That at all times hereinafter mentioned, Defendants, without cause or justification, did negligently inflict emotional distress and humiliation upon Plaintiff NICHOLAS MANFRE causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

71. That Defendant THE CITY OF NEW YORK is vicariously liable for the actions and conduct of its employees, including Defendant P.O. HECTOR VALDEZ, and Defendants JOHN P.O. DOE NO. 1 – P.O. JOHN DOE NO. 20.

72. That by reason of the foregoing, Plaintiff NICHOLAS MANFRE became sick, sore, lame and disabled; Plaintiff NICHOLAS MANFRE has received permanent personal, emotional and psychological injuries and will continue to be so for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish

and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff, NICHOLAS MANFRE, demands judgement against Defendants, THE CITY OF NEW YORK, P.O. HECTOR VALDEZ, and P.O. JOHN DOE NO 1 – P.O. JOHN DOE NO. 20, in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated: New York, New York
December 4, 2018

Yours, etc.,

RASKIN & KREMINS, L.L.P.



By: RHONDA KATZ, ESQ.

Attorneys for Plaintiff

NICHOLAS MANFRE

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

ATTORNEY'S VERIFICATION

RHONDA KATZ, ESQ., an attorney duly admitted to practice before all the Courts of the State of New York, hereby affirms the truth of the following under the penalties of perjury:

That I am associated with the law firm RASKIN & KREMINS, LLP, attorneys for Plaintiff herein.

That I have read the annexed COMPLAINT and know the contents thereof and that the same is true to my own knowledge except as to those matters therein alleged to be made upon information and belief, and as to those matters, I believe them to be true.

That the reason why this verification is made by your affirmant instead of Plaintiff is because Plaintiff does not reside within the County of New York, which is the County in which Raskin & Kremins, LLP maintains its office.

That the grounds for my belief as to all matters alleged to be on information and belief, are statements of said Plaintiff, papers and records in Plaintiff's possession, and a general investigation of the facts of this case.

Dated: New York, New York
December 4, 2018


RHONDA KATZ, ESQ.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF QUEENS

NICHOLAS MANFRE,

Plaintiff,

-against-

THE CITY OF NEW YOR, P.O. HECTOR VALDEZ and

P.O. JOHN DOE NO. 1 – P.O. JOHN DOE NO. 20,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

RASKIN & KREMINS, LLP
Attorneys for Plaintiff
NICHOLAS MANFRE
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
within named Court on , 2000.

NOTICE OF
SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon.
the judges of within named Court, at , on .

Dated: New York, New York

Yours, etc.,

RASKIN & KREMINS, LLP
Attorneys for Plaintiff(s)
160 Broadway-4th Floor
New York, NY 10038
(212) 587-3434